



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

August 02, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 16074
(THIRD REVISION)

EXPIRATION DATE:2028-06-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Welker, Inc.
Sugar Land, TX
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the manufacture, mark, sale, and use of non-DOT specification stainless steel pressure vessels designed to the ASME Code Section VIII Division 1 for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.201, 173.202 and 173.203 in that UN Standard packaging is required, except as provided herein.
5. BASIS: This special permit is based on the application of Welker Inc. dated June 26, 2024, submitted in accordance with § 107.109.

Tracking Number: 2024065434

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Diesel fuel	3	UN1202	III
Gasoline	3	UN1203	II
Hydrocarbons, liquid, n.o.s.	3	UN3295	I, II or III
Petroleum crude oil	3	UN1267	I, II or III
Petroleum distillates, n.o.s. or Petroleum products, n.o.s.	3	UN1268	I, II or III

7. SAFETY CONTROL MEASURES:

a. PACKAGING – Packaging prescribed is a stainless steel non-DOT specification pressure vessel designed to ASME Code Section VIII Division 1 2010 Edition, 2011 Addenda. Each pressure vessel has a maximum allowable working pressure of 136 psi, must be constructed of SA-240 316L stainless steel and has a maximum capacity of 2.5 gallons. The pressure vessel must conform to the Welker, Inc. documentation and drawings on file with the Office of Hazardous Materials Safety (OHMS).

b. TESTING – After final assembly, each pressure vessel must be pressurized from 50 to 75 psi with nitrogen. The pressure must be maintained for approximately 60 to 120 seconds, while all the fittings as well as the primary opening closure for the cylinder are checked for any signs of leakage.

c. OPERATIONAL CONTROLS –

(1) Requalification of each pressure vessel authorized under this permit must be in accordance with the requirements of § 180.205 for a DOT 4B cylinder. A proof pressure test must be performed in accordance with § 180.205(g) for a DOT 4B cylinder at a test pressure of 177 psi. Requalification of each pressure vessel must be performed by an entity registered with the Department and in compliance with the requirements of § 107.805.

- (2) The pressure vessel may be used only for the materials being transported for the purpose of analytical testing.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo-only aircraft, cargo vessel and rail freight.

10. MODAL REQUIREMENTS: None as a requirement of this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

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